

25CV03941 Deborah LaBarre vs John J Thyne, III

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-06-26

Motion: CMC; Demurrer; Motions to Compel

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Source SHA-256: 947b0dff6595e6c1b98bedd34e32a0d9b4f7427b01429b7b95de35877723950c

Tentative Ruling: Deborah LaBarre vs John J Thyne, III

Case Number

25CV03941

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 06/26/2026 - 10:00

Nature of Proceedings

CMC; Demurrer; Motions to Compel

Tentative Ruling

For all reasons stated herein:

(1) The demurrer of cross-defendant Deborah LeBarre to the cross-complaint by John Thyne is sustained with leave to amend as to the first, second, third, sixth, and seventh causes of action. Cross-complainant John Thyne may file a first amended cross-complaint on or before July 13, 2026.

(2) The motion of plaintiff Deborah LeBarre to compel further responses to special interrogatories, set one, is granted as to interrogatory Nos. 4, 8, 11, 12, 13, 14, 24, and 25. Defendant John Thyne shall serve supplemental, code-compliant, verified responses on or before July 17, 2026.

(3) The motion of plaintiff Deborah LeBarre to compel further responses to requests for production, set one, and for production of documents is granted as to request Nos. 2, 4, and 5. Defendant John Thyne shall serve supplemental, code-compliant, verified responses and produce all responsive documents on or before July 17, 2026.

(4) The motion of plaintiff Deborah LeBarre to compel further responses to requests for admission, set one, or in the alternative deem matters admitted is denied as moot.

Background:

On June 25, 2025, plaintiff Deborah LaBarre (LaBarre) initiated this action by filing a complaint against defendant John J. Thyne III (Thyne) alleging five causes of action for (1) money had and received, (2) elder abuse, (3) breach of fiduciary duty, (4) fraud, and (5) attorney malpractice.

After filing a first amended complaint (FAC) and motion practice over a demurrer to the FAC, on January 2, 2026, LaBarre filed her operative second amended complaint (SAC) against Thyne alleging five causes of action (COAs) for (1) money had and received, (2) elder abuse, (3) breach of fiduciary duty, (4) fraud, and (5) conversion.

As alleged in the SAC:

LaBarre is 77 years old, resides in Colorado, has difficulty seeing because she has macular degeneration, has difficulty hearing because of congenital hearing loss, and has difficulty ambulating. (SAC, ¶¶ 1-2.) LaBarre is a retired schoolteacher who has never operated a business. (SAC, ¶ 3.)

Thyne is an attorney and has practiced in California for 24 years. (SAC, ¶¶ 4-5.) In October and November 2023, Thyne was working as an attorney for a real estate development company in Santa Barbara. (SAC, ¶ 6.) As part of his work, Thyne held money invested by people such as the LaBarre in one or more trust accounts and disbursed funds from those accounts. (SAC, ¶ 9.)

Around October 2022, Thyne drafted an investment proposal for a real estate development project that was sent to LaBarre. (SAC, ¶ 10.) Thyne was involved with this project. (Ibid.)

A more detailed proposal was subsequently sent to LaBarre. (SAC, ¶ 11.) This proposal would become a contract if LaBarre agreed to the terms and contributed \$50,000 or \$100,000 towards financing for a real estate development at 75267 Morningstar Drive, Indian Wells, California (Morningstar Property). (Ibid.)

If LaBarre contributed \$100,000, LaBarre would be repaid her investment plus 8 percent interest after the Morningstar Property was sold, plus a share of any profits. (SAC, ¶ 12.)

LaBarre accepted the investment proposal. (SAC, ¶ 13.) On November 8, 2023, LaBarre wired \$100,000 into an account controlled by Thyne. (Ibid.)

After wiring the \$100,000, LaBarre became a participant in the Residential Real Estate Financing And Equity Share Agreement By And Between 75267 Morning Star Properties LLC And MS Development Capital Group (Morningstar Agreement). (SAC, ¶¶ 14-15, Ex. 1.) LaBarre wired these investment funds with the intention that they be used for the Morningstar Property pursuant to the Morningstar Agreement (collectively, Morningstar Joint Venture). (SAC, ¶ 17.)

Pursuant to the Morningstar Agreement, LaBarre and the other investors were to be repaid from the net proceeds (Net Proceeds) of the sale of the Morningstar Property. (SAC, ¶¶ 20-21.)

The parties to the Morningstar Agreement were 75267 Morningstar Properties LLC and the unincorporated association MS Development Capital Group (MSDCG). (SAC, Ex. 1 at pp. 1, 6.)

“Upon sale of the Property, MSDCG will receive repayment of any priority notes for advances pursuant to paragraph 7 herein, then a return of the Advanced Funds with 8% interest, plus 8% of net profits. At the direction of MSDCG, these funds must be paid to a law firm or other third party to hold and distribute as agreed among the participants of MSDCG.” (SAC, Ex. 1 at ¶ 10.)

“Following sale of the property and distribution of the proceeds thereof, this agreement shall be extinguished as complete. The term is expected to be fifteen (15) months or less.” (FAC, Ex. 2 at ¶ 2.) “The plan for this project is to complete improvements and sell for a profit within 15 months of this Agreement....” (SAC, Ex. 1 at ¶ 8.)

“Fiduciary Duties: All parties to this agreement, regardless of when said party joined, shall have the utmost duty of care and competence to the best interests of the remaining parties to the fullest extent of the law and any injured party for breach of such duties may seek all legal remedies on behalf of the Property, that party, or any combination of parties hereto.” (SAC, Ex. 1 at ¶ 16.)

The Morningstar Property was sold in May 2024. (SAC, ¶ 22.)

In May 2024, the Net Proceeds were paid to Thyne. (SAC, ¶ 24.)

In May 2024, the Net Proceeds were deposited in a trust account controlled by Thyne. (SAC, ¶ 25.) Thyne was the only person with access to this trust account. (SAC, ¶ 26.)

There were sufficient Net Proceeds to repay with interest all that was due to the investors in the Morningstar Agreement including LaBarre. (SAC, ¶ 23.)

Upon receipt of the Net Proceeds and depositing such funds into the trust account, Thyne was obligated to repay the investors including LaBarre the amount of their investment plus 8 percent interest. (SAC, ¶ 27.)

On June 9, 2024, Thyne repaid \$50,000 plus 8 percent interest to another investor in the Morningstar Joint Venture. (SAC, ¶ 29.)

Thyne failed to notify LaBarre of the sale of the Morningstar Property, that he had received the Net Proceeds, that he had placed the Net Proceeds in a trust account, or that any other investor had been repaid their investment from the Net Proceeds. (SAC, ¶¶ 28-31.)

LaBarre learned of the Morningstar Property sale in August or September 2024. (SAC, ¶ 34.) Thyne refused to repay LaBarre her investment funds or the 8 percent interest due to her. (SAC, ¶¶ 35-36.)

LaBarre never authorized Thyne to use her investment funds for any purpose other than the Morningstar Joint Venture. (SAC, ¶¶ 17, 37.)

After the Morningstar Property was sold in May 2024, Thyne gambled with the money that he was obligated to deliver to LaBarre by using LaBarre's money to finance risky ventures for his own potential benefit. (SAC, ¶ 51.)

More than a year after the sale of the Morningstar Property, Thyne refuses to deliver the money LaBarre was entitled to receive from the sale of the Morningstar Property. (SAC, ¶ 50.) Thyne wrongfully withheld LaBarre's assets for his own use. (SAC, ¶¶ 66-68.)

On February 18, 2026, Thyne filed an answer to the SAC generally denying the allegations therein and setting forth thirty-seven affirmative defenses.

Also on February 18, 2026, Thyne filed a verified cross-complaint (CC) against LaBarre and seven other cross-defendants, Kary Lindgren (Lindgren), 35 Las Alturas LLC, Country Club Lifestyle 1 LLC, Country Club Lifestyle 2 LLC, Bruce Wellens (Bruce), Thomas Mitchell, and Mitra Ghanadian. The CC sets forth COAs for (1) accounting, (2) conversion, (3) constructive fraud, (4) breach of fiduciary duty, (5) breach of contract, (6) quasi-contract/unjust enrichment, and (7) negligence. The first, second, third, sixth, and seventh COAs are asserted against all cross-defendants including LaBarre.

The CC alleges that Bruce's son, Brian Wellans (Brian), recruited Thyne to allow Brian to transact business ventures (Joint Ventures) through an account in the name of Law Offices of John J. Thyne III. (CC, ¶ 15.) Brian had previously been convicted of financial crimes. (Ibid.) "Because Brian ... was not able to own real property in his own name, nor bank accounts, he asked [Thyne] to grant him access to a business account styled Law Offices of John J. Thyne III for the purpose of receiving capital contributions then receiving proceeds from sales of joint venture properties that were distributed to the various joint venturers." (CC, ¶ 23.)

For several years, the Joint Ventures arranged by Brian were successful. (CC, ¶ 15.) However, "[d]uring the years he used the business account of Law Offices of John J. Thyne III, Brian ... caused an arrearage of hundreds of thousands of dollars to accrue in that account." (CC, ¶ 25.) Then, on May 5, 2024, Brian passed away after suffering an aneurysm on April 22, 2024. (CC, ¶¶ 15, 30.)

Upon Brian's death, due to cash shortfalls as to other Joint Ventures, "it was decided that the proceeds of funds from the Morningstar [Joint] Venture would be used to salvage the Barker Pass Venture, the 740 Hot Springs Venture, and the 750 Hot Springs Venture." (CC, ¶ 15.) "All three of these [other] ventures were held in the name of [Lindgren's] LLCs as Brian ... had arranged." (Ibid.) Thyne alleges that the proceeds of the Morningstar Joint Venture were used to service loans on behalf of Lindgren. (Ibid.) As alleged by Thyne, rather than returning those funds to the coventurers, Lindgren absconded with the money. (Ibid.)

As Thyne alleges, it was Bruce or Brian that recruited LaBarre's participation in the Morningstar Joint Venture. (CC, ¶ 2.) According to Thyne, he has been sued in this action by LaBarre for return of her funds despite that Thyne never met LaBarre or communicated with her. (CC, ¶ 15.) Thyne alleges that, as a coventurer himself, Thyne along with LaBarre and some of the other cross-defendants are all entitled to a return of their funds (apparently from Lindgren or his affiliates) related to the Joint Ventures and an accounting. (Ibid.)

On December 31, 2025, LaBarre filed three motions to compel including (1) a motion to compel further responses to special interrogatories, set one (SIs), (2) a motion to compel further responses to requests for admission, set one (FRAs), or in the alternative deem matters admitted, and (3) a motion to compel further responses to requests for production, set one, and to compel production of documents (RFPs). These motions are also set for this hearing. No oppositions were filed by Thyne.

On March 24, 2026, LaBarre filed a demurrer to the CC on the grounds that the CC fails to state a cause of action against her. LaBarre's demurrer is set for this hearing. No opposition was filed by Thyne.

The demurrer and three motions to compel were continued to this hearing after the court ordered the parties to file a joint and separate statements as to outstanding issues.

On June 5, 2026, the parties filed a joint statement of outstanding issues. The joint statement indicates that verifications and substantive responses to the RFAs were served.

On June 6, 2026, LaBarre filed separate statements as to the motion to compel further responses to SIs and RFPs. The separate statement for the SIs indicates that SI Nos. 4, 8, 11, 12, 13, 14, 24, and 25 are still in dispute. The separate statement for the RFPs indicates that RFP Nos. 2, 4, and 5, are still in dispute. Thyne did not file a response to these separate statements.

Analysis:

(1) Standard on Demurrer

“Because the function of a demurrer is to test the sufficiency of a pleading as a matter of law, we ... assume the truth of the allegations in the complaint, but do not assume the truth of contentions, deductions, or conclusions of law. [Citation.] It is error for the trial court to sustain a demurrer if the plaintiff has stated a cause of action under any possible legal theory, and it is an abuse of discretion for the court to sustain a demurrer without leave to amend if the plaintiff has shown there is a reasonable possibility a defect can be cured by amendment.” (California Logistics, Inc. v. State of California (2008) 161 Cal.App.4th 242, 247). “The reviewing court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded.” (Payne v. National Collection Systems, Inc. (2001) 91 Cal.App.4th 1037, 1043.) “[I]n ruling on a demurrer the trial court may take into account in addition to the complaint itself any matter that may be properly considered under the doctrine of judicial notice.” (Cruz v. County of Los Angeles (1985) 173 Cal.App.3d 1131, 1133-1134.)

(2) First COA for Accounting

“An action for an accounting has two elements: (1) ‘that a relationship exists between the plaintiff and defendant that requires an accounting’ and (2) ‘that some balance is due the plaintiff that can only be ascertained by an accounting.’” (Sass v. Cohen (2020) 10 Cal.5th 861, 869.) “An action for an accounting has been characterized as ‘a means of discovery.’ [Citation.] This characterization is consistent with the idea that a plaintiff seeking an accounting cannot ‘allege[] the right to recover a sum certain’ because he or she lacks the information necessary to determine the precise amount that may be due. [Citation.] The plaintiff’s lack of knowledge drives the need for discovery; and the fact that the gap can be filled via discovery implies the information is within the control of the defendant. In other words, the defendant in an accounting action possesses information unknown to the plaintiff that is relevant for the computation of money owed.” (Ibid.)

Here, the CC alleges that Thyne never had any communications with LaBarre or ever met LaBarre, and that Thyne was not directed by Bruce to return any funds to LaBarre. (CC, ¶¶ 2, 39.) The only allegation of a relationship between Thyne and LaBarre is that Thyne “participated in a joint venture with Cross-Defendants [apparently including LaBarre] in the Morningstar Venture.” (CC, ¶ 53.) The CC does not allege that there is any dispute over the amount of money that LaBarre contributed to the Morningstar Joint Venture or whether she received any return. The CC does not allege facts that LaBarre has any information in her possession that is unknown to Thyne or would shed light on any amounts owed to Thyne pertaining to the facts issue in this action. The elements of accounting have not been alleged by Thyne as to LaBarre. The court will sustain the demurrer as to this COA with leave to amend.

(3) Second COA for Conversion

“Conversion is generally described as the wrongful exercise of dominion over the personal property of another. [Citation.] The basic elements of the tort are (1) the plaintiff’s ownership or right to possession of personal property; (2) the defendant’s

disposition of the property in a manner that is inconsistent with the plaintiff's property rights; and (3) resulting damages." [Citations.] 'Conversion is a strict liability tort. The foundation of the action rests neither in the knowledge nor the intent of the defendant. Instead, the tort consists in the breach of an absolute duty; the act of conversion itself is tortious. Therefore, questions of the defendant's good faith, lack of knowledge, and motive are ordinarily immaterial.' " (Regent Alliance Ltd. v. Rabizadeh (2014) 231 Cal.App.4th 1177, 1181.) "Money may be the subject of conversion if the claim involves a specific, identifiable sum; it is not necessary that each coin or bill be earmarked." (Welco Electronics, Inc. v. Mora (2014) 223 Cal.App.4th 202, 209.) "[C]onversion is a tort that may be committed only with relation to personal property and not real property." (Munger v. Moore (1970) 11 Cal.App.3d 1, 7.) Here, the CC does not allege facts that LaBarr took any actions that had any effect on Thyne's personal property or ever exercised custody or control over Thyne's personal property. The court will sustain the demurrer as to this COA with leave to amend.

(4) Fourth COA for Breach of Fiduciary Duty

"The elements of a cause of action for breach of fiduciary duty are: (1) existence of a fiduciary duty; (2) breach of the fiduciary duty; and (3) damage proximately caused by the breach." (Gutierrez v. Girardi (2011) 194 Cal.App.4th 925, 932.) "A fiduciary duty is a duty to act with the utmost good faith for the benefit of the other party. It can arise from a recognized legal relationship such as guardian and ward, trustee and beneficiary, principal and agent, or attorney and client or from a 'confidential relationship' ... founded on a moral, social, domestic, or merely personal relationship. The 'essential elements' of a confidential relationship have been described as 1) The vulnerability of one party to the other which 2) results in the empowerment of the stronger party by the weaker which 3) empowerment has been solicited or accepted by the stronger party and 4) prevents the weaker party from effectively protecting itself." (Thomas v. Regents of University of California (2023) 97 Cal.App.5th 587, 629 (Thomas).)

"Partnership is a fiduciary relationship, and partners are held to the standards and duties of a trustee in their dealings with each other. '[I]n all proceedings connected with the conduct of the partnership every partner is bound to act in the highest good faith to his copartner and may not obtain any advantage over him in the partnership affairs by the slightest misrepresentation, concealment, threat or adverse pressure of any kind.' [Citation.] '[A] partner who seeks a business advantage over another partner bears the burden of showing complete good faith and fairness to the other' (i.e., that the advantage was not procured by misrepresentation, concealment, threat or adverse pressure). [Citation.]" (Agam v. Gavra (2015) 236 Cal.App.4th 91, 112-113, internal quotation marks omitted.)

"The rights and liabilities of joint adventurers, as between themselves, are governed by the same rules which apply to partnerships." (Boyd v. Bevilacqua (1966) 247 Cal.App.2d 272, 288.) "[T]here are only three elements to show the existence of a joint venture, which are similar to a general partnership: (1) joint interest in a common business; (2) with an understanding to share profits and losses; and (3) a right to joint control." (Jacobs v. Locatelli (2017) 8 Cal.App.5th 317, 328, fn. 10.)

Here, while there is an alleged joint venture relationship at issue in this action, the CC does not allege facts suggesting that LaBarr took any action to breach any duty she owed to Thyne pertaining to this joint venture. (See CC, ¶ 53.) The court will sustain the demurrer as to this COA with leave to amend.

(5) Sixth COA for Unjust Enrichment

"The elements of an unjust enrichment claim are the 'receipt of a benefit and [the] unjust retention of the benefit at the expense of another.' " (Peterson v. Cellco Partnership (2008) 164 Cal.App.4th 1583, 1593.) Here, the CC does not allege facts that LaBarr received any benefits at the expense of Thyne or anyone else. The court will sustain the demurrer as to this cause of action with leave to amend.

(6) Seventh COA for Negligence

When “ ‘the pleaded facts of negligence and injury do not naturally give rise to an inference of causation[,] the plaintiff must plead specific facts affording an inference the one caused the others.’ [Citation.] That is, the plaintiff must allege facts, albeit as succinctly as possible, explaining how the conduct caused or contributed to the injury.” (Bockrath v. Aldrich Chemical Co., Inc. (1999) 21 Cal.4th 71, 78–79.) Here, the CC does not allege any acts of negligence by LaBarr that caused injury to Thyne or anyone else. The court will sustain the demurrer as to this cause of action with leave to amend.

(7) Motion to Compel Further Responses to SIs

“A trial court must be mindful of the Legislature’s preference for discovery over trial by surprise, [and] must construe the facts before it liberally in favor of discovery” (Williams v. Superior Court (2017) 3 Cal.5th 531, 540.) “Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.” (Code Civ. Proc., § 2017.010.)

“The party to whom interrogatories have been propounded shall respond in writing under oath separately to each interrogatory by any of the following:

“(1) An answer containing the information sought to be discovered.

“(2) An exercise of the party’s option to produce writings.

“(3) An objection to the particular interrogatory.” (Code Civ. Proc., § 2030.210, subd. (a).)

“Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits.” (Code Civ. Proc., § 2030.220, subd. (a).) “If an interrogatory cannot be answered complete, it shall be answered to the extent possible.” (Id., subd. (b).) “If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.” (Id., subd. (c).)

“If the answer to an interrogatory would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer to this section and to specify the writings from which the answer may be derived or ascertained. This specification shall be in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained. The responding party shall afford to the propounding party a reasonable opportunity to examine, audit, or inspect these documents and to make copies, compilations, abstracts, or summaries of them.” (Code Civ. Proc., § 2030.230.)

A party may move for an order compelling further responses to interrogatories if an answer is evasive or incomplete or an objection is without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a).)

SI No. 4 asks the date when Thyne first received any funds from the sale of the Morningstar Property. (SI Sep. Stat., p. 7, ll. 19-23.) Thyne did not provide a substantive answer to this SI. The court finds this interrogatory straightforward and relevant to claims and defenses in this action. LaBarr submits evidence that Thyne admitted to receiving the funds at issue in this SI. (SI Sep. Stat., p. 8, ll. 20-27.) Thyne did not respond to this evidence. The CC appears to allege that funds related to the

Morningstar Joint Venture were placed in a business account of Thyne's law firm and then directed to other projects as agreed by Thyne. (CC, ¶¶ 32-33.) Thyne's undue burden objections are unsupported by evidence. Thyne's objections are otherwise overruled. The court will grant the motion as to SI No. 4.

SI No. 8 asks for the date that specific funds were placed in a Community West Bank account for Thyne's law firm. (SI Sep. Stat., p. 8, ll. 1-4.) Thyne did not provide a substantive answer to this SI. The court finds this interrogatory straightforward and relevant to claims and defenses in this action. LaBarr submits evidence that Thyne admitted to receiving these funds in this account. (SI Sep. Stat., p. 8, ll. 20-27.) Thyne did not respond to this evidence. The CC alleges that one or more accounts for Thyne's law firm received and distributed funds pertaining to the issues in this lawsuit. (CC, ¶¶ 32-33.) Thyne's burden objections are unsupported by evidence. Thyne's objections are otherwise overruled. The court will grant the motion as to SI No. 8.

SI Nos. 11, 12 and 13, ask who was paid funds from the proceeds of the sale of the Morningstar Property. (SI Sep. Stat., p. 10, ll. 7-14; p. 11, ll. 4-11; p. 12, ll. 6-14.) Thyne did not provide a substantive answer to these SIs. The court finds these SIs straightforward and relevant to claims and defenses in this action. The CC appears to allege that funds related to the Morningstar Joint Venture were placed in a business account of Thyne's law firm and then directed to other projects as agreed by Thyne. (CC, ¶¶ 32-33.) LaBarr submits evidence that Thyne admitted to receiving funds pertaining to the Morningstar Joint Venture. (SI Sep. Stat., p. 8, ll. 20-27.) Thyne did not respond to this evidence. Thyne's burden objections are unsupported by evidence. Thyne's objections are otherwise overruled. The court will grant the motion as to SI Nos. 11, 12, and 13.

SI No. 14 asks if Thyne was a party to the Morningstar Agreement. (SI Sep. Stat., p. 13, ll. 6-9.) Thyne did not provide a substantive answer to this SI. The court finds this SI straightforward and relevant to claims and defenses in this action. The CC appears to allege that Thyne participated in a joint venture with LaBarre. (CC, ¶ 53.) Thyne's burden objections are unsupported by evidence. Thyne's objections are otherwise overruled. The court will grant the motion as to SI No. 14.

SI Nos. 24 and 25 asks if the completion of the Morningstar Agreement was dependent on any other projects and, if so, the identity of these projects. (SI Sep. Stat., p. 14, ll. 8-10; p. 15, ll. 2-5.) Thyne refused to answer these SIs. The court finds these SIs straightforward and relevant to claims and defenses in this action. The CC appears to allege that Thyne participated in a joint venture with LaBarre. (CC, ¶ 53.) The CC appears to allege that funds related to the Morningstar Joint Venture were placed in a business account of Thyne's law firm and then directed to other projects as agreed by Thyne. (CC, ¶¶ 32-33.) Thyne's burden objections are unsupported by evidence. Thyne's objections are otherwise overruled. The court will grant the motion as to SI Nos. 24 and 25.

(8) Motion to Compel Further Responses to RFPs

"The party to whom a demand for inspection, copying, testing, or sampling has been directed shall respond separately to each item or category of item by any of the following:

"(1) A statement that the party will comply with the particular demand for inspection, copying, testing, or sampling by the date set for the inspection, copying, testing, or sampling pursuant to paragraph (2) of subdivision (c) of Section 2031.030 and any related activities.

"(2) A representation that the party lacks the ability to comply with the demand for inspection, copying, testing, or sampling of a particular item or category of item.

"(3) An objection to the particular demand for inspection, copying, testing, or sampling." (Code Civ. Proc., § 2031.210, subd. (a).)

“A statement that the party to whom a demand for inspection, copying, testing, or sampling has been directed will comply with the particular demand shall state that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.” (Code Civ. Proc., § 2031.220.)

“A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (Code Civ. Proc., § 2031.230.)

“If only part of an item or category of item in a demand for inspection, copying, testing, or sampling is objectionable, the response shall contain a statement of compliance, or a representation of inability to comply with respect to the remainder of that item or category.” (Code Civ. Proc., § 2031.240, subd. (a).)

“If the responding party objects to the demand for inspection, copying, testing, or sampling of an item or category of item, the response shall do both of the following:

“(1) Identify with particularity any document, tangible thing, land, or electronically stored information falling within any category of item in the demand to which an objection is being made.

“(2) Set forth clearly the extent of, and the specific ground for, the objection. If an objection is based on a claim of privilege, the particular privilege invoked shall be stated. If an objection is based on a claim that the information sought is protected work product under Chapter 4 (commencing with Section 2018.010), that claim shall be expressly asserted.” (Code Civ. Proc., § 2031.240, subd. (b).)

“If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log.” (Code Civ. Proc., § 2031.240, subd. (c)(1).)

A party may move to compel a further response if the statement of compliance is incomplete, the representation of inability to comply is inadequate, incomplete, or evasive, or an objection is without merit. (Code Civ. Proc., § 2031.310, subd. (a).) “The motion shall set forth specific facts showing good cause justifying the discovery sought by the demand.” (Id., subd. (b)(1).)

RFP Nos. 2, 4, and 5 ask for the bank records and correspondence that show receipt and disbursement of the proceeds from the sale of the Morningstar Property, as well as the bank statements for the account utilized for the Morningstar Joint Venture from April 1, 2024 to December 31, 2024. (RFP Sep. Stat., p. 7, ll. 17-22; p. 9, ll. 15-19; p. 10, ll. 21-25.) Thyne refused to provide a substantive response to these RFPs.

The court finds these RFPs straightforward and relevant to claims and defenses in this action. The CC appears to allege that Thyne participated in a joint venture with LaBarre. (CC, ¶ 53.) The CC appears to allege that funds related to the Morningstar Joint Venture were placed in a business account of Thyne's law firm and then directed to other projects as agreed by Thyne. (CC, ¶¶ 32-33.) LaBarre submits evidence that Thyne admitted to receiving funds for the Morningstar Joint Venture in this account. (SI Sep. Stat., p. 8, ll. 20-27.) Thyne did not respond to this evidence. LaBarre has demonstrated good cause for further responses. Thyne's burden objections are unsupported by evidence. Thyne's objections are otherwise overruled with the exception of financial privacy. The court will grant the motion as to RFP Nos. 2, 4, and 5.

To address Thyne's privacy concerns, the court will order that any responsive records shall only be used by LaBarr as to this litigation and shall be kept confidential. If Thyne believes an additional protective order is warranted, the parties can meet and confer on an appropriate stipulated protective order or Thyne may file a noticed motion.

(9) Attorney Client Privilege

Thyne may redact documents or information compelled by this ruling that is protected by the attorney-client privilege or work product doctrine and place these redactions on a privilege log with sufficient detail for LaBarre to ascertain the basis and merits of the claim of privilege.

(10) RFAs

Based on the joint statement filed on June 5, 2026, it appears that verifications and substantive responses have been provided to these RFAs. No separate statement was submitted by LaBarre as to these RFAs. The court will deny the motion as moot as to the RFAs.

Judges

Judge Donna D. Geck

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